

Plaintiff has provided credit card billing statements and a Cardholder Agreement. There is, in Exhibit A to the declaration of Ms. Gibbons, what purports to be the application submitted by Defendant to Wells Fargo. However, this court finds the Exhibit to be largely illegible, and will disregard it. The court's ruling does not hinge on this exhibit.

The remaining exhibits show a Cardholder Agreement, where the terms, such as making payments for costs incurred, receiving account statements, and the acceptance of the agreement terms by use of the card and account. Ms. Gibbons also declared that it was the custom and policy of Plaintiff to issue such an agreement whenever a party applies for a credit card.

These exhibits, coupled with the declaration of Ms. Gibbons, establish a prima facie showing for Breach of Contract, and that the balance owed to the Plaintiff is \$10,919.94. There is evidence of an implied contract in that an agreement was mailed to Defendant, and he then, with knowledge of the terms, activated and used the card for purchases. The billing statements reflect that Defendant did not repay all of the money that was given to him for the purchases.

The burden would normally shift to the Defendant at this point, but the Motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.
2. Plaintiff to prepare the order after hearing.

6. 9:00 AM CASE NUMBER: L25-02009
CASE NAME: DISCOVER BANK VS. LEON NORFORD
***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT PURSUANT TO STIP FILED BY PLN**
ON 12/12/25
FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff filed, on 112/12/25, a motion to enter judgment pursuant to stipulation. The motion was served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement, filed 12/12/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$7,278.07, less any credits for payments received, and including any costs.

Defendant made total payments in the amount of \$479, and court costs totaled \$296.02, thus the Judgment amount should be \$7,095.09.

Disposition

Plaintiff's Motion is granted.

Plaintiff to file order on Motion, as well as submit Judgment.

7. 9:00 AM CASE NUMBER: L25-04349
CASE NAME: WELLS FARGO BANK, NA VS. PEDRO GARCIA
*HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS
FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed, on 12/19/25, a Motion for Judgment on the Pleadings. The motion was timely served on counsel for Defendant. The Motion is unopposed. On 12/4/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All but the final request for admission were deemed to be true by the court.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.